

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED**

2260 N Street, Merced
627 W. 21st Street, Merced
1159 G Street, Los Banos

Monday, September 28, 2026

Tentative rulings are provided for the following courtrooms and assigned Judicial Officers with scheduled civil matters:

Courtroom 8 – Hon. Stephanie L. Jamieson

Courtroom 9 – Commissioner David Foster

Courtroom 12 – Hon. Jennifer O. Trimble

Parties who wish to appear remotely must contact the clerk of the court at (209) 725-4111 to seek permission and arrange for a remote appearance.

IMPORTANT: Court reporters will NOT be provided; parties must make their own arrangements. Electronic recording is available in certain courtrooms and may only be activated upon request.

The tentative rulings for specific calendars follow:

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Monday, September 28, 2026
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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17CV-02586	Victor Arteaga, et al vs State of California, et al.
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Order to Show Cause Re: Dismissal - Notice of Settlement

Appearance required.

Order to Show Cause Re: Sanctions

Appearance required.

18CV-04324	Joayne Melo vs David Nervino et al.
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Order to Show Cause Re: Dismissal - Notice of Settlement

CONTINUED pursuant to the declaration of counsel filed September 15, 2026, to December 1, 2026, to allow time for the final steps necessary for settlement to be completed.

26CV-03081

Jovani Gaytan-Paez vs Razzari CDJR, et al.

Petition to Compel Arbitration and Stay Proceedings

Appearance required. Petition to compel arbitration is DENIED. The arbitration agreement is procedurally and substantively unconscionable and therefore unenforceable. (See, *Phan v. Knight Sacramento SU Inc.* (2026) 121 Cal.App.5th 641.)

26CV-03182

Michelle Rojas, et al. vs The Regents of the University of California, et al.

Demurrer to Plaintiff's Complaint

The demurrer is SUSTAINED WITH LEAVE TO AMEND, on the basis of failure to state facts sufficient to constitute a cause of action.

For example, and not exhaustive, although the complaint alleges various violations, the complaint fails to allege with sufficient facts the actual individual harm caused by the alleged violations as well as sufficient facts that Defendants knowingly caused the harm.

Leave to amend has been requested. As the complaint does not show on its face that it is incapable of amendment, leave to amend is granted.

Plaintiff is to file an amended complaint within ten (10) days of this Court's order.

26CV-04746

Kayla Lorenzo vs Stephanie Martinez

Order to Show Cause Re: Restraining Order

Appearance required. Proof of timely personal service of the notice of hearing and temporary orders on Respondent was filed on September 16, 2026.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Short Cause Court Trials
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Monday, September 28, 2026
1:30 pm

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Case No.	Title / Description
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26CV-01836-APP	Jovani Gaytan vs. Downtown Body and Paint
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Trial De Novo

Appearance required.

26CV-03221-APP	Jasmine Nava., et al vs. Ragaa Metias., et al
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Trial De Novo

Appearance required.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Limited Civil
Commissioner David Foster
Courtroom 9

627 W. 21st Street, Merced

Monday, September 28, 2026
1:30 p.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

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Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
25CV-00182	Midland Credit Management Inc. vs. Erika Roman
	Order to Show Cause Re: Dismissal - Notice of Settlement
	On July 14, 2025, Plaintiff filed a Notice of Settlement indicating conditional settlement and that a request for dismissal would be filed no later than July 29, 2026. No request for dismissal has been filed. If no one appears to request more time to complete the settlement, the Court will dismiss the action pursuant to rule 3.1385(c)(2) of the California Rule of Court.
26CV-03113	[Parties' names withheld pursuant to CCP § 1161.2(a)(1)]
	Court Trial: Unlawful Detainer
	Appearance required.

26CV-04102 [Parties' names withheld pursuant to CCP § 1161.2(a)(1)]

Court Trial: Unlawful Detainer

Appearance required.

26CV-04183 [Parties' names withheld pursuant to CCP § 1161.2(a)(1)]

Court Trial: Unlawful Detainer

Appearance required.

26CV-04186 [Parties' names withheld pursuant to CCP § 1161.2(a)(1)]

Court Trial: Unlawful Detainer

Appearance required.

26CV-04268 [Parties' names withheld pursuant to CCP § 1161.2(a)(1)]

Court Trial: Unlawful Detainer

Appearance required.

26CV-04395 [Parties' names withheld pursuant to CCP § 1161.2(a)(1)]

Court Trial: Unlawful Detainer

Appearance required.
